

Priyanka Pradhan vs Deepak Baliarsingh Opposite Party on 2 September, 2021

Author: Biswanath Rath

Bench: Biswanath Rath

IN THE HIGH COURT OF ORISSA AT CUTTACK

TRP(C) No.372 of 2019

Priyanka Pradhan

....

Petitioner
Mr.K.C. Dash,
Advocate

-versus-

Deepak Baliarsingh

....

Opposite Party

Mr. Manas Chand,
Advocate

CORAM:
JUSTICE BISWANATH RATH
ORDER

02.09.2021 Order No.

03. 1. Heard learned counsel for the parties.

2. This Transfer Petition has been filed by the wife-Petitioner seeking transfer of C.P. No. 51 of 2018 from the court of learned Judge, Family Court, Khurda to the court of learned Judge, Family Court, Bhubaneswar.

3. On perusal of the averments made in the petition and looking to the address given in the summon involving C.P. No.51 of 2018, it appears, even though earlier the wife was residing at Banapur in the district of Khurda, for there is no conveyance to go to contest the case in the court at Khurda, in the latter part of 2019, the wife- petitioner shifted to her uncle's house at Bhubaneswar. There was also clear submission in respect of plea taken in the petition. Furthermore, there is also two other proceedings pending in the court at Bhubaneswar. It is submitted that the husband has // 2 // mentioned the address of the wife to be a resident of Vill-Odagaon, PO/PS- Banapur, Dist.-Khordha, who is presently residing at Bhubaneswar.

4. Mr.Dash, learned counsel for the Petitioner referring to the grounds taken in this petition submitted that Petitioner is an unemployed lady and to sustain her livelihood, she filed I.A. No.17/2019 praying therein monthly maintenance of Rs.50,000/- per month from the husband as he was a Software Engineer at Mumbai. She also filed a criminal case against the husband, vide

Cr.L.P. No.77/2018 before the Family Court, Bhubaneswar, for interim maintenance. In the above background, it is difficult on her part to bear the travelling expenses and other related expenditure for attending the proceeding pending in the court of learned Judge, Family Court, Khurda. Furthermore, there is also two proceedings pending in the court at Bhubaneswar

5. Opposite party-Husband filed a proceeding u/s.13(1) of the Hindu Marriage Act, 1955 read with Section 7 of Family Court's Act before the learned Judge, Family Court, Khurda being registered as C.P. No.51 of 2018 for decree of divorce.

6. Considering the submission made on behalf of the wife- Petitioner and looking to the financial status of the wife-Petitioner, this Court observes for husband required to attend the case at the instance of Wife at Bhubaneswar, there would be no difficulty, if the case of the husband gets transferred to the learned Judge, Family Court, Bhubaneswar, rather it would be convenient for both the parties to attend in the proceedings at one place. In the process, this Court directs for transfer of the C.P. No.51 of 2018 from the court of // 3 // learned Judge, Family Court, Khurda to the court of learned Judge, Family Court, Bhubaneswar.

7. Petitioner is directed to serve a copy of this order on the learned Judge, Family Court, Khurda within a period of ten days hence and on receiving this order, learned Judge, Family Court, Khurda shall transmit the case records involving C.P. No.51 of 2018 within a period of two weeks thereafter, to the court of learned Judge, Family Court, Bhubaneswar for its doing the needful. This Court also directs learned Judge, Family Court, Bhubaneswar to conclude the proceeding vide C.P. No.51 of 2018 as expeditiously as possible, preferably, within a period of nine months from the date of transmission of the records. For transfer of the Proceeding at the instance of the husband to Bhubaneswar, both the parties are directed to file their appearance before the learned Family Court, Bhubaneswar soon after receipt of the case records.

8. Parties are further directed not to seek unnecessary adjournment of the matter and will co-operate the learned Judge, Family Court, Bhubaneswar in timely disposal of the proceeding.

9. With the above observation and direction, the Transfer Petition stands disposed of with vacation of interim order dated 15.11.2019.

(Biswanath Rath) Judge U.K.Sahoo